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ct. dt. 7/8/19

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THE FIRST CIRCUIT
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IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU DIVISION
STATE OF HAWAII

rct# 95468 $ 65-

ASSOCIATION OF APARTMENT OWNERS OF MARINE SURF WAIKIKI, INC., a Hawai'i nonprofit corporation, by its Board of Directors

Plaintiff

v.

NIKODEM PIKOR

Defendant.

NIKODEM PIKOR

Third Party Plaintiff,

v.

THYSSENKRUPP ELEVATOR CORPORATION, Foreign Profit Corporation

Third Party Defendant.

CIVIL No. 1RC19-1-0003776

THIRD PARTY COMPLAINT; DECLARATION; SUMMONS

THIRD PARTY COMPLAINT AND SUMMONS

1. Third Party Plaintiff NIKODEM PIKOR is a natural person a part-owner of apartment unit No. 906 of the Marine Surf Waikiki Condominium Project located at 364 Seaside Ave, Honolulu, Hawai'i 96815; Mr. Pikor is also a resident of the Marine Surf Waikiki Condominium Project and is an intended beneficiary of an elevator maintenance contract between Plaintiff ASSOCIATION OF APARTMENT OWNERS MARINE SURF WAIKIKI, INC., (hereinafter "AOAO Marine Surf") and Third Party Defendant THYSSENKRUPP ELEVATOR CORPORATION.

2. THYSSENKRUPP ELEVATOR CORPORATION (hereinafter "TEC") is a Foreign For-Profit Corporation (Delaware), utilizing a registered Hawai'i agent: PHCS HAWAII, INC., located at 1600 Pauahi Tower, 1003 Bishop St., Honolulu, Hawaii 96813.

3. On diligent investigation and information and belief, two (2) elevators were permitted and installed in the Marine Surf Condominium Project, 364 Seaside Ave, Honolulu, Hawai'i 96815 during or about 1967 and subject to the State of Hawai'i Elevator Code A17.1(1965) in effect at the time of installation.

4. On or about June 14, 2010, AOAO Marine Surf, by and through its managing agent, W. E. Denison Corporation, agreed to an automatically renewing contract for elevator maintenance services for the two elevators at the Marine Surf Condominium Project, 364 Seaside Ave, Honolulu, Hawai'i 96815 with Third Party Defendant TEC.

5. On or about May 9, 2018, Third Party Plaintiff PIKOR used one of the two elevators and inadvertently left a storage container in a position where automatically closing, bi-parting,

elevator doors (which consist of elevator car doors and hoistway (landing) doors) impacted the storage container as the doors closed; the elevator doors, instead of stopping or re-opening, the hoistway (landing) door uncoupled from the elevator car door clutch and the hoistway (landing) doors were subsequently pushed off their tracks as the elevator car door automatically reopened.

COUNT I: BREACH OF CONTRACT

6. TEC's contract, titled as a "PLATINUM PREMIER MAINTENANCE AGREEMENT" signed by the AOAO Marine Surf's managing agent, promised that:

> ThyssenKrupp Elevator will perform the following services:
> o Examine your elevator equipment for optimum operation. **Our examination,** lubrication and **adjustment will cover the following components** of your elevator system:
> o Control and landing positioning systems
> o Signal fixtures
> o Machines, drives, motors, governors, sheaves, and wire ropes
> o Power units, pumps, valves, and jacks
> **o Car and hoistway door operating devices and door protection equipment**
> o loadweighers, car frames and platforms, and counterweights
> o Safety mechanisms
> o Lubricate equipment for smooth and efficient performance
> **o Adjust elevator parts and components to maximize performance and safe operation** (emphasis added).

Defendant and Third Party Plaintiff PIKOR claims TEC failed to examine and/or adjust "Car and hoistway door operating devices and door protection equipment" designed to prevent the hoistway (landing) doors from uncoupling from the elevator car doors and failed to "adjust elevator parts and components to maximize . . . safe operation" and as a result PIKOR was victimized by one or more concealed defects, including but not limited to worn, misaligned, or misadjusted parts, that threatened the safety of the residents and guests of AOAO Marine Surf and violated the State of Hawai'i Elevator Code which require, among other rules, that:

> Hangers for horizontally sliding doors shall be provided with means to prevent the doors from jumping the tracks. Stops shall be provided to prevent the hanger from leaving the end of the tracks or suitable stops may be provided on the door only. (*American Standard Safety Code for Elevators.. . .*, A17.1-1965, Rule 110.10c).

COUNT II: UNFAIR AND/OR DECEPTIVE TRADE PRACTICES HRS 480-2 and/or 481A-3(a)(5) and (a)(12) or HRS § 708-870(b)

7. Defendant and Third Party Plaintiff PIKOR claims that TEC unfairly and deceptively attributed the defective operation of the particular elevator as a "misuse" on its invoice to AOAO Marine Surf for repair services while admitting, on the same invoice, that the elevator doors "interlock and hangers" were "adjusted" for proper operation; the classification of the elevator defect as "misuse" allows TEC to collect employee overtime reimbursement over and above the money paid by AOAO Marine Surf for contracted maintenance and repair and constitutes an unfair and deceptive practice in violation of Hawai'i Revised Statues (HRS) § 480-2 and/or § 481A-3 or § 708-870(b).

[continued on next page]

PRAYER

Defendant prays for relief as follows:

1. Reimbursement for all fees and costs of investigation incurred since the date of the incident in an amount to be determined at trial as compensatory damages on which an award of treble damages be awarded.

2. The award of a reasonable attorney fee and costs of defense.

3. all other just and reasonable relief.

Dated: Waimanalo, Hawai'i, July 3, 2019.

Joseph N. A. Ryan, Jr. 8607
Attorney for Defendant/Third-Party Plaintiff

DECLARATION

I, NIKODEM PIKOR, have read this Complaint, know the contents, and verify the statements above are true and correct in my personal knowledge and belief. I DECLARE UNDER PENALTY OF LAW THAT THE ABOVE IS TRUE AND CORRECT.

Honolulu, Hawai'i, July 4, 2019

Nikodem Pikor

SUMMONS

Form #1DC50

IN THE DISTRICT COURT OF THE FIRST CIRCUIT
HONOLULU **DIVISION**
STATE OF HAWAI'I

Plaintiff
THIRD- PARTY PLAINTIFF

NIKODEM PIKOR

Reserved for Court Use

Civil No. 1RC19-1-0003776

Defendant
THIRD-PARTY DEFENDANT

THYSSENKRUPP ELEVATOR CORPORATION,
Foreign Profit Corporation

Filing Party/Attorney Name, Attorney Number, Firm Name (if applicable), Address, and Telephone Number

Joseph Ryan, Jr. 8607
Josph Ryan Jr. AAL, LLLc
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Waimanalo, HI 96795
ph/fax 808 259 6870

SUMMONS

THE STATE OF HAWAI'I:

TO: The Director of Public Safety of the State of Hawai'i, the Director's deputy, or any police officer or other person authorized by the laws of the State of Hawai'i:

This Summons shall not be personally delivered between 10:00 p.m. and 6:00 a.m. on premises not open to the public, unless a Judge permits, in writing on this Summons, personal delivery during those hours.

TO THE DEFENDANT:

You are required to file a written answer or appear before the District Judge of this Court, in the Judge's Courtroom, on the day and at the time designated by the checked box on page 2. If the Defendant is a corporation or limited liability company, Hawai'i law requires it to be represented by an attorney licensed to practice in the State of Hawai'i.

IF YOU OR YOUR ATTORNEY FAIL TO ATTEND THE COURT HEARING AT THE TIME AND PLACE DESIGNATED OR FILE A WRITTEN ANSWER A DEFAULT JUDGMENT WILL BE TAKEN AGAINST YOU FOR THE RELIEF DEMANDED IN THE COMPLAINT.

NOTICE TO PARTIES: (Honolulu Division only): If this case involves a residential lease and if the Defendant(s) disagrees with the statements in the Complaint, the Court may require the parties to submit their dispute to mediation at the Pre-Trial conference that will be scheduled on the Monday, not a holiday, following the court date specified above. If the Monday following your court date is a holiday, the Pre-Trial conference will occur on the next business day. If the parties are not able to resolve the dispute within 20 minutes of mediation, the Cout will set a trial date.

Date: JUL - 8 2019

Clerk

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COURT ADDRESSES AND RETURNABLE DAYS:

☑ **Honolulu Division, 1111 Alakea Street, 10th floor Courtroom 10A or 10B, Honolulu, Hawai'i**

☐ at 8:30 a.m. on the fifth day following date of service, excluding Saturdays, Sundays, legal holidays for summary possession.

or

☑ at 1:30 p.m. on the second Monday following date of service, and should that Monday be a legal holiday then upon the next business day.

☐ **'Ewa Division, 870 Fourth Street, Pearl City, Hawai'i**

☐ at 9:00 a.m. on the second Thursday following date of service, and should that Thursday be a legal holiday then upon the next Thursday.

☐ **Ko'olaupoko OR Ko'olauloa Division, 45-939 Po'okela Street, Kāne'ohe, Hawai'i**

☐ at 9:00 a.m. on the second Friday following date of service, and should that Friday be a legal holiday then upon the next Friday.

☐ **Wahiawā OR Waialua Division, 1034 Kilani Avenue, Wahiawā, Hawai'i**

☐ at 9:00 a.m. on the second Wednesday following date of service, and should that Wednesday be a legal holiday then upon the next Wednesday.

☐ **Wai'anae Division, 4675 Kapolei Parkway, Kapolei, Hawai'i**

☐ at 9:00 a.m. on the second Tuesday following date of service, and should that Tuesday be a legal holiday then upon the next Tuesday.

Mailing address for the Courts: **1111 Alakea Street, Civil Division, Third floor, Honolulu, Hawai'i 96813**



In accordance with the Americans with Disabilities Act and other applicable state and federal laws, if you require an accommodation for a disability when working with a court program, service, or activity, please contact the District Court Administration Office at PHONE NO. 538-5121, FAX 538-5233, or TTY 539-4853 at least ten (10) working days before your proceeding, hearing, or appointment date. **For Civil related matters, please call 538-5629 or visit the District Court Service Center at 1111 Alakea Street, Third (3rd) Floor.**